or record" produced by a witness at a legislative hearing is to be within the privilege against self-crimination.

As a deduction from the cases I have cited the rule is laid down in Wigmore on Evidence to be: "Where the corporation's misconduct involves also the claimant's misconduct, or where the document is in reality the personal act of the claimant, though nominally that of the corporation, the disclosures are virtually his own, and to that extent his privilege protects him from producing them."

It would unduly extend this opinion to review the cases which are said to oppose Wigmore's deduction, but as *Hale* v. *Henkel*, 201 U. S. 43, is cited in the opinion of the court, I will refer to it briefly.

It was there held that an officer of a corporation could not refuse to produce its books on the ground that they would criminate the corporation. What privilege an officer of the corporation had from producing the books on the ground that they might criminate him was not necessary to decide, as immunity from prosecution was given by statute for any matter as to which he should testify. It may be contended that it is a natural inference from the decision that but for the immunity granted he could have claimed such privilege. See also *Nelson* v. *United States*, 201 U. S. 92. Circuit Judge Gilbert, in a well-considered opinion in *Ex parte Chapman*, 153 Fed. Rep. 153, made such deduction from *Hale* v. *Henkel*, and discharged Chapman from custody to which he had been committed for refusing to produce for the inspection of a grand jury the books and papers belonging to a corporation of which he was an officer.

The weight of authority, therefore, is against the power of a court to compel the production of books of a private corporation by any one whom they would criminate. And the cases seem right on principle. The spirit of the privilege is that a witness shall not be used in any way to his crimination. When that may be the effect of any evidence